IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III (SPECIAL BENCH)

Item No.104
New CA-333/2022
In
(CAA)-06(ND)/2021

IN THE MATTER OF:
JMA Marketing Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 06.09.2022

CORAM:
DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

PRESENT:
For the Applicant : Adv. Suman Kumar Jha and Adv. S. Shiva for all Applicant Companies
For the Respondent :

ORDER

New CA-333/2022 :

This is an Application under Rule 11 of the NCLT Rules, 2016 for urgent hearing of the 2nd Motion Petition bearing No.(CAA)-06/ND/2021.

Heard Mr. Suman Kumar Jha, Ld. Counsel appearing for the Applicant and Ms. Hemlata Rawat, Ld. Counsel appearing for the Official Liquidator.

It is submitted that the Regional Director (North Region), ROC, NCT of Delhi & Haryana, Official Liquidator and Income Tax Department have submitted their respective reports and there is no objection raised by these Departments with respect to the Scheme of Arrangement for Amalgamation.

From the perusal of records, it is seen that reports of Regional Director (North Region), ROC, NCT of Delhi & Haryana, Official Liquidator are on record but the report of Income Tax Department is not on record.

Ld. Counsel appearing for the Applicant referred to a letter written by Income Tax Department, Ward No.1 (1), CR Building, New Delhi to Shri Yogesh

contd..

Putney, Sr. Standing Counsel, Income Tax Department, New Delhi dated 16.2.2022 wherein it is stated that there is no objection for Amalgamation of the Transferor Company of M/s. ACL Components Limited with the Transferee Company and the said letter was filed before the Hon'ble NCLT, Chandigarh Bench, Chandigarh.

The Proxy Counsel appearing for Income Tax Department could not give any clarification as to whether Income Tax Department has given any no objection.

We, therefore, direct Sr. Standing Counsel, Income Tax Department to take necessary instructions from the Department and to appear before this Tribunal on the next date of hearing.

List the matter on 12.9.2022.

-Sd-

(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Surjit (Court-III)
06.9.2022